

Conditional Waiver and Release on Progress Payment

Texas Property Code § 53.284(b) · statutory form · signed by the subcontractor

Project

Job No.

On receipt by the signer of this document of a check from _____ in the sum of
(maker of check)
\$ _____ payable to _____ and when the check has been properly endorsed
(payment or payees of check)
and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanic's lien
right, any right arising from a payment bond that complies with a state or federal statute, any common law payment
bond right, any claim for payment, and any rights under any similar ordinance, rule, or statute related to claim or
payment rights for persons in the signer's position that the signer has on the property of
_____ located at _____ to the following extent:
(owner) (location)
_____ .
(job description)

This release covers a progress payment for all labor, services, equipment, or materials furnished to the property or to
_____ as indicated in the attached statement(s) or progress payment request(s), except
(person with whom signer contracted)
for unpaid retention, pending modifications and changes, or other items furnished.

Before any recipient of this document relies on this document, the recipient should verify evidence of payment to the
signer.

The signer warrants that the signer has already paid or will use the funds received from this progress payment to
promptly pay in full all of the signer's laborers, subcontractors, materialmen, and suppliers for all work, materials,
equipment, or services provided for or to the above referenced project in regard to the attached statement(s) or
progress payment request(s).

By (Signature) _____ Date _____
Company name _____ Title _____